

Right to Protest and Excessive Policing



For Prelims: Right to protest , Freedom of speech , National Human Rights Commission , UN Convention Against Torture , Article 21

For Mains: Right to Protest and Reasonable Restrictions under Article 19, Police Reforms and Democratic Policing in India, Public Order vs Civil Liberties

Source: TH

Why in News?

Violent clashes between protesters and police during the **youth-led 'Chalo Sansad' march** in New Delhi in July 2026 have reignited debate over the **constitutional limits of policing public protests** and the State's power to restrict civil and digital liberties.

- The demonstrations witnessed Metro station closures and **internet restrictions** , along with allegations of the use of tear gas, **pellet guns, shock batons**, and lathi charges by security forces, prompting legal scrutiny before the Delhi High Court.

Summary

- The **'Chalo Sansad' protests (July 2026)** reignited debate over balancing the **constitutional right to protest** with the State's responsibility to maintain **public order** , highlighting issues of excessive policing, internet shutdowns, and civil liberties.
- The article examines the **constitutional, statutory, and judicial framework** governing protests and police powers while emphasizing the need for **accountable, rights-based, and democratic policing** through institutional reforms.

What is the Constitutional Basis for the Right to Protest?

- Right to Protest:** The Indian Constitution guarantees the **right to protest** , though the word

"protest" is not explicitly mentioned. It is implicitly derived from a combination of fundamental rights under **Part III** :

- **Article 19(1)(a):** Guarantees the freedom of speech and expression.
- **Article 19(1)(b):** Grants the right to assemble peacefully and without arms.
- **Article 19(1)(c):** Ensures the right to form associations or unions.
- **Article 21:** Protects the right to life and liberty, which encompasses the right to live with dignity and voice grievances against the State.
- These rights are essential in a democracy to hold the **executive accountable, ventilate public grievances, and foster informed public discourse.**
- **Limitations on the Right to Protest: The right to protest is not absolute.** Under the Constitution, the State can impose "**reasonable restrictions**" on these fundamental freedoms.
 - **Under Article 19(2):** **Restrictions on freedom of speech** can be imposed in the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, **public order** , decency or morality, or in relation to contempt of court, defamation, or incitement to an offence.
 - **Under Article 19(3):** Restrictions on the freedom of assembly can be imposed in the interests of the **sovereignty and integrity of India** or **public order** .
- **Statutory Framework:** Executive powers to regulate protests stem from statutory laws:
 - **Section 163 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023** empowers Executive Magistrates to issue prohibitory orders in urgent situations to prevent public disturbance.
 - **Local Police** statutes like the **Delhi Police Act, 1978** authorise law enforcement to regulate assembly routes, timings, and conditions.
- **Definition of Unlawful Assembly:** Under the **Bharatiya Nyaya Sanhita (BNS), 2023** , a gathering of five or more individuals becomes an "unlawful assembly" only if its common object involves using criminal force, resisting the law, committing an offence, or compelling others by threat.
 - A lawful assembly can turn unlawful if its conduct changes during the event.

What Standards and Laws Govern Police Action and Crowd Control?

- **Democratic Policing Framework:** The **National Human Rights Commission's (NHRC) Manual on Human Rights for Police Officers** emphasizes that police serve as protectors of citizen rights and the rule of law. It highlights that excessive force erodes public trust and escalates civil unrest.
- **International Principles:** Police action must align with the **UN Basic Principles on the Use of Force and Firearms (1990)** , which mandate that force must always be lawful, strictly necessary, and proportionate.
- **Principle of Minimum Force:** Under the BNSS, 2023 and the **Code of Conduct for the Police in India** , officers must prioritize warnings, advice, and persuasion. When force becomes unavoidable, only the "irreducible minimum force" required may be applied.
- **Identification and Accountability:** The BNSS, 2023 and the Supreme Court's landmark judgment in **D.K. Basu v. State of West Bengal (1997)** requires police personnel **making arrests to wear clear, accurate, and visible name tags.**
 - However, current statutes lack an explicit parallel requirement for personnel engaged purely in crowd control or assembly dispersal—creating accountability gaps when officers conceal their faces or remove name tags.

Supreme Court Judgments on Protests and Police Excess

- **Ram Manohar Lohia v. State of Bihar (1965):** In **Ram Manohar Lohia v. State of Bihar (1965)** , the Supreme Court distinguished between "**law and order**" and "**public order**." It held that **law and order** concerns disturbances affecting **individuals or a limited group** , whereas **public order** refers to disturbances that affect the **community or society at large** .
 - Therefore, **the State may restrict protests only when they pose a genuine threat to public order, not merely because they cause routine law and order issues.**
- **Himat Lal K. Shah v. Commissioner of Police (1973):** The Supreme Court held that while the State may regulate assemblies on public streets, it cannot impose arbitrary restrictions that extinguish the right to protest.
- **In Re: Ramlila Maidan Incident (2012):** The Court held that citizens have a constitutional right to peaceful protest, and force must be used only as a last resort with maximum restraint.
- **Anita Thakur v. State of Jammu & Kashmir (2016):** The Court ruled that the use of excessive police force on demonstrators violates fundamental rights and awarded monetary compensation to injured protesters.
- **Mazdoor Kisan Shakti Sangathan v. Union of India (2018):** Reaffirmed that while police can regulate demonstrations to maintain public order, they cannot extinguish the **right to assemble altogether**.
- **Amit Sahni v. Commissioner of Police (2020):** The Court ruled that while dissent is a constitutional right, protests cannot result in the indefinite occupation of public spaces or block traffic corridors.

What are the Concerns Regarding Excessive Policing?

- **Political Interference:** Political influence over transfers, postings, and investigations undermines police independence and impartiality.
- **Outdated Training:** Police training gives inadequate emphasis to **human rights, de-escalation techniques, forensic investigation, and community policing** , increasing the risk of excessive force.
 - Although India became a signatory to the **UN Convention Against Torture (UNCAT)** in 1997, it has yet to ratify the treaty or pass specific domestic legislation criminalizing torture.
- **Manpower Shortages and Occupational Stress:** As of **January 2024** , India has **155 police personnel per lakh population** , well below the **UN-recommended norm of 222** , with nearly **21% vacancies** .
 - Long working hours and excessive workload have resulted in **83.8% of personnel reporting high stress (SPIR 2025)** , contributing to **burnout, impaired judgement, and an increased reliance on coercive policing**.
- **Disproportionate Use of Force:** The use of **tear gas, lathi charges, preventive detention, and mass arrests** against peaceful demonstrators often violates the **Doctrine of Proportionality** , which requires State action to be **lawful, necessary, and the least restrictive** .
 - It also departs from the **UN Basic Principles on the Use of Force and Firearms** , which mandate **minimum necessary force** .
- **Lack of Transparency and Accountability:** Allegations of **unidentified individuals participating**

- in crowd-control operations , police officers **without visible name badges** , and masked personnel undermine accountability.
- This is inconsistent with the principles laid down in *D.K. Basu v. State of West Bengal (1997)* , which emphasised identifiable police personnel and transparent law enforcement.
- **Violation of Gender-Sensitive Safeguards:** Reports of **manhandling women protesters** , arbitrary detention, or inadequate deployment of **women police personnel** undermine constitutional guarantees of **dignity under Article 21** and statutory safeguards requiring women to be handled by women police, except in exceptional circumstances.
- **Digital Restrictions Beyond Constitutional Limits:** Blanket **internet shutdowns, signal jammers, and communication blackouts** during protests can disproportionately restrict **Articles 19(1)(a) and 19(1)(g)** .
 - In *Anuradha Bhasin v. Union of India (2020)* , the Supreme Court held that such restrictions must satisfy the tests of **legality, necessity, proportionality, publication, and periodic review** .
- **Weak Civilian Oversight:** The poor implementation of the **Prakash Singh (2006)** directives, particularly the ineffective functioning of **Police Complaints Authorities (PCAs)** and **State Security Commissions (SSCs)** , weakens independent scrutiny of police misconduct and perpetuates institutional impunity.
 - Under-reporting of police misconduct and the absence of **independent oversight mechanisms** foster a culture of impunity.
- **Colonial Police Structure:** The **Police Act, 1861** created a force primarily accountable to the executive rather than the public.
 - Despite the **Model Police Act, 2006** , most States continue with the colonial framework, weakening democratic policing.

Way Forward

- **Standard Operating Procedures (SOPs):** Police forces must be extensively trained in the application of the new BNSS/BNS provisions, specifically emphasizing non-lethal crowd control tactics and negotiation.
- **Implement the Prakash Singh Directives:** To ensure impartial investigations into police brutality, state governments must urgently comply with the Supreme Court's directive in *Prakash Singh v. Union of India* (2006) by operationalizing truly independent, legally empowered State and District Police Complaints Authorities (PCAs).
- **Separation of Investigation and Law & Order:** As recommended by the **Second Administrative Reforms Commission (2nd ARC)** and the **Malimath Committee** , separating investigation from law and order duties would improve the quality of investigations through **scientific forensics** and reduce reliance on **coerced confessions** .
- **Modernization and Capacity Building:** The **Modernization of Police Forces (MPF)** scheme must be expedited to fill the 21% manpower gap, improve the officer-to-citizen ratio, and introduce technology-driven policing (e.g., mandatory body-worn cameras and CCTV in all police stations).
 - Transition from regime policing to **SMART** policing by making the force **S** trict and Sensitive, **M** odern and Mobile, **A** lert and Accountable, **R** eliable and Responsive, **T** ech-savvy and Trained.

Conclusion

The **right to protest** is a cornerstone of India's constitutional democracy, while **public order**

remains a legitimate State responsibility. Any restriction on protests must uphold the **Rule of Law** , **Constitutional Morality** , and the **Doctrine of Proportionality** , ensuring that state action is **lawful, necessary, proportionate, transparent, and subject to judicial review** . The **Chalo Sansad** episode underscores the need to balance **democratic dissent with public security** in accordance with the Constitution.

Drishti Mains Question:

"The right to protest is fundamental but not absolute." Examine the constitutional and statutory framework governing public protests in India.

Frequently Asked Questions (FAQs)

1. What constitutional provisions form the basis of the Right to Protest in India?

The right to protest is derived from **Articles 19(1)(a), 19(1)(b), 19(1)(c), and Article 21** , subject to reasonable restrictions under **Articles 19(2) and 19(3)** .

2. What is the significance of the Prakash Singh (2006) judgment?

The Supreme Court directed the establishment of **State Security Commissions, Police Complaints Authorities, Police Establishment Boards** , and fixed tenure for senior police officers to ensure police autonomy and accountability.

3. What principles govern police use of force during protests?

Police action must follow the principles of **legality, necessity, proportionality, and minimum force** , as laid down in the **BNSS** , **NHRC guidelines** , and the **UN Basic Principles on the Use of Force and Firearms (1990)** .

4. What did the Supreme Court hold in Anuradha Bhasin v. Union of India (2020)?

The Court held that **internet shutdowns must satisfy the tests of legality, necessity, proportionality, publication, and periodic review** , making blanket restrictions constitutionally impermissible.

5. Why is police reform essential for democratic policing in India?

Police reforms are needed to **reduce political interference, strengthen accountability, improve professionalism, modernize policing, and protect fundamental rights while maintaining public order** .

UPSC Civil Services Examination, Previous Year Questions (PYQs)

Mains

Q. Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute. Comment. **(2022)**

Q. What do you understand by the concept of “freedom of speech and expression”? Does it cover hate speech also? Why do the films in India stand on a slightly different plane from other forms of expression? Discuss. **(2014)**

Scientists Develop IoT-Based Health Tracker for Yaks



Source: TH

Indian Scientists have developed an **IoT** -based smart collar to monitor the health, stress levels, and movement of **high-altitude yaks, especially in remote Himalayan grazing areas** near the international border.

- **About:** The Indian yak (*Bos grunniens*), known as the “**ship of the Himalayas** ”, is a high-altitude bovine valued for its ability to survive extreme cold and difficult terrain. It is an essential livelihood resource for Himalayan communities.
- **Distribution:** India has about **58,000 yaks, with nearly half found in Ladakh** . Other major yak-rearing regions include **Arunachal Pradesh, Sikkim, Himachal Pradesh, and Uttarakhand**. Wild yaks are mainly restricted to the **Tibetan Plateau** .
- **Habitat:** Yaks inhabit high-altitude **alpine meadows, alpine steppes, and desert steppes, generally between 3,200 and 5,400 metres** . They prefer cold plateaus and may migrate seasonally in search of grass, moss, and lichens.
- **Physical Features:** Wild male yaks may weigh up to **1,000 kg, while females weigh around 300 kg** . They have long blackish-brown hair, curved horns, broad hooves, large lungs, a high red blood cell count, and high haemoglobin concentration, enabling them to survive in low-oxygen environments.
- **Behaviour and Food Habits:** Yaks are mainly daytime grazers and live in herds. **Females and young usually form larger groups**, while adult males often remain alone or in smaller groups. Their diet includes grasses, shrubs, forbs, mosses, lichens, and other low-growing plants.
- **Reproduction and Lifespan:** The mating season of wild yaks generally begins in September, and calves are usually born in June after a gestation period of about nine months. Females generally produce **one calf every two years**, and wild yaks may live for about 25 years.
- **Conservation Status (Wild Yak)(*Bos mutus*):**
 - **IUCN Red List:** Vulnerable
 - **CITES:** Appendix I
 - **Wildlife Protection Act, 1972:** Schedule I



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